

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thanh-Tam Ho	Team: Team # 8	CCRB Case #: 200305883	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 08/04/2003 11:10 AM	Location of Incident: 78 Street & 37 Ave	18 Mo. SOL 2/4/2005	Precinct: 115
Date/Time CV Reported Mon, 08/04/2003 11:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/04/2003 11:23 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dennis Friendly	08721	930185	042 PCT
2. POM Brian Larkin	27479	904324	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Marc Burgos	17663	929799	042 PCT
2. POM Dennis Johnson	16680	895580	BARRIER
3. SGT Alexis Rodriguez	02689	910682	115 PCT
4. POM Taejin Lim	28851	928647	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dennis Friendly	Force: Officer Dennis Friendly used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Brian Larkin	Abuse: Officer Brian Larkin stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated

Synopsis

On August 4, 2003, § 87(2)(b) was driving on 37th Avenue near 78th Street with his § 87(2)(b) old brother, § 87(2)(b) when they came upon a stopped NYPD truck driven by Officer Dennis Johnson. Officers Brian Larkin, Marc Burgos, and Dennis Friendly were nearby, picking up barriers after a parade. As § 87(2)(b) tried to pass the truck, he pinned Officer Friendly between the NYPD truck and his vehicle. In response, Officer Friendly slammed his hands on the hood of § 87(2)(b)'s vehicle and then slapped § 87(2)(b) on his forehead. § 87(2)(b) exited the car and cursed at Officer Friendly for hitting a "minor." After a few moments, his brother ordered him back in the car and they started to drive away. Officer Brian Larkin stopped § 87(2)(b)'s car within a block of the incident and issued § 87(2)(b) numerous summonses. An ambulance also responded to treat Officer Friendly. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b), gave a phone account on August 4, 2003 (encl. 1g) and was interviewed on August 5, 2003 at the CCRB (encls. 2-4h). § 87(2)(g)

On August 4, 2003, § 87(2)(b) and his brother, § 87(2)(b) were driving on 37th Avenue when they came upon a marked NYPD truck stopped near 78th Street. Officers in plain clothes from the truck were picking up barriers off the street and the truck was holding up traffic. § 87(2)(b) and § 87(2)(b) were not sure if these men were police officers. § 87(2)(b) tried to pass the car in front of him and the NYPD truck, but could not continue because Officer Dennis Friendly, a male black officer weighing around 190lbs and in his early 30s, was standing in the street in front of the car. § 87(2)(b) stopped the car about a foot from Officer Dennis Friendly, whose back was to § 87(2)(b)'s car. Officer Friendly turned around and said, "I don't believe this," and slammed his palms on the hood of the car. Officer Friendly walked to the passenger side of the car, slapped § 87(2)(b)'s left forehead with his hand (Allegation A) and walked away. § 87(2)(b) said to § 87(2)(b) "Stop the car. He just hit me."

§ 87(2)(b) drove the car around the NYPD truck, stopped in front of it and called someone on his cell phone. § 87(2)(b) was "ready to fight" and got out of the car and started yelling at Officer Friendly. § 87(2)(b) said, "Why did you do that? You son of a bitch. I'm a § 87(2)(b)-old boy. How are you gonna hit a § 87(2)(b) old boy for no reason? Y'all ain't NYPD. How's the NYPD gonna hit a § 87(2)(b) old boy for no reason?" § 87(2)(b) thought that Officer Friendly looked surprised and scared to know that he had hit a § 87(2)(b) old and backed away from § 87(2)(b) saying nothing. A 6'3" male white officer weighing 250lbs (later identified as Officer Brian Larkin) and a male Hispanic officer (later identified as Officer Marc Burgos) came and told § 87(2)(b) to calm down and leave. § 87(2)(b) was very upset and yelled at all of them, "Fuck you. You all ain't NYPD. How you fucking gonna do that? Bi-otch." § 87(2)(b) stated that the officers may have been saying things to him, but he was so upset that he couldn't remember. § 87(2)(b) yelled to the people nearby and said, "Did you see that?" § 87(2)(b) said to § 87(2)(b) "Get in the car, I'm already calling the cops." § 87(2)(b) got back in the car and they started to drive away. They stopped the car about 1.5 blocks from the place of incident and § 87(2)(b) got out of the car and confirmed the license number of the truck. Officer Burgos started saying things that § 87(2)(b) could not recall and § 87(2)(b) yelled, "I'm only § 87(2)(b). How's your boy going to hit a § 87(2)(b) year old kid?" Officer Burgos yelled, "It doesn't matter how old you are." As § 87(2)(b) got back in the car he said, "What do you mean it doesn't matter?"

§ 87(2)(b) drove another block and a half and the NYPD truck followed them and stopped when § 87(2)(b) stopped at a red light. An officer, later identified as Officer Larkin got in front of the car and told

§ 87(2)(b) to stop (Allegation B). § 87(2)(b) told Officer Larkin, “Move! Get out of the way!” § 87(2)(b) and § 87(2)(b) said, “You ain’t cops- how can you tell us to stop the car? Are you guys cops? Show us your badge.” Officer Larkin walked to the driver’s side of the car and showed them his badge, saying, “We ain’t cops?” Officer Larkin took the keys out of the ignition and said, “You want to do it this way? Fine, we’ll do it this way.” § 87(2)(b) said, “Fine. We’ll do it this way.” § 87(2)(b) and § 87(2)(b) got out of the car and stood on the side of the road while § 87(2)(b) tried to call the police on his cell phone.

After 7-10 minutes, a white male officer, PO3, arrived in a scooter and told Officer Friendly to get out of the truck. Officer Friendly limped out of the truck. § 87(2)(b) and § 87(2)(b) heard Officer Friendly tell PO3 that § 87(2)(b)’s car hit him. An Asian male officer (later identified as Officer Taejin Lim), and Sergeant Alexis Rodriguez, a male Hispanic officer, and a Middle Eastern male officer, PO5, arrived and spoke with Officer Friendly. An ambulance arrived and Officer Friendly was given treatment and then taken away in the ambulance. Officer Lim spoke with § 87(2)(b) and § 87(2)(b) and an officer gave them the names of 3 officers who were picking up barriers. § 87(2)(b) refused medical treatment and he and § 87(2)(b) left.

In his CCRB interview § 87(2)(b) stated that he would consider mediation. § 87(2)(b) soon thereafter returned to his home in § 87(2)(b) and could not be reached.

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b), called the CCRB to file this complaint as the incident occurred on August 4, 2003 (encls. 1-3i) and was interviewed on August 20, 2003, at the CCRB (encl. 2-4j). Details are below:

On August 4, 2003, § 87(2)(b) was driving with his brother, § 87(2)(b) on 37th Avenue when they encountered traffic near 79th Street caused by an NYPD truck and men in plain clothes picking up barriers off the street. The cars in front of § 87(2)(b) drove around the barrier truck and § 87(2)(b) followed them. As § 87(2)(b) started to drive around the truck, three plain clothes officers crossed the street in front of § 87(2)(b)’s car. Two male white officers, fully crossed the street, and as the third officer, a 30 year old male black weighing around 180lbs, (later identified as Officer Dennis Friendly) neared the passenger’s side front corner of § 87(2)(b)’s car, Officer Friendly said, “Stop! What the hell are you doing? Are you stupid?” Officer Friendly hit the right front hood of § 87(2)(b)’s car with his hands and § 87(2)(b) started to curse at Officer Friendly. As § 87(2)(b)’s car continued to move forward at about 10-15mph, Officer Friendly kicked the right side fender, then hit the right side mirror with his hand, and then hit § 87(2)(b) with his hand. § 87(2)(b) did not see Officer Friendly hit § 87(2)(b) but rather heard the sound of Officer Friendly slapping § 87(2)(b). Only after Officer Friendly hit § 87(2)(b) did § 87(2)(b) stop the car. § 87(2)(b)’s car did not sustain any damages.

§ 87(2)(b) said to § 87(2)(b) “Stop the car. I’m going to fight him,” and got out of the car and started yelling and cursing at Officer Friendly. § 87(2)(b) yelled, “How can you hit a child?” § 87(2)(b) stated that the three officers also cursed at § 87(2)(b) but could not recall what they said. § 87(2)(b) called 911 with his cell phone and told § 87(2)(b) at least ten times, “Get back in the car. I’m already calling 911.” § 87(2)(b) got back into the car, got out again to take down the license plate of the NYPD truck, and then got back in the car.

§ 87(2)(b) drove down 37th Avenue, was connected on his cell phone to the CCRB and was in the process of filing a complaint regarding the force used by Officer Friendly. During this time the officers resumed their work picking up the barriers and § 87(2)(b) did not see Officer Friendly limping or favoring his leg at all. § 87(2)(b) was not sure, but he thought he stopped in front of a red light at 37th Avenue and 73rd Street when a 6’ white male in his 30s and weighing 220lbs (later identified as Officer Larkin) told him to stop the car. § 87(2)(b) said, “Get out of the way.” Officer Larkin showed § 87(2)(b) his badge and said, “Listen wise guy. You want to play games? You do it your way or we’ll do it our way. Call your friends, call the cops, whatever. Here, I’m a police officer.” Officer Larkin took the

keys out of the ignition and said, "Get out of the car." § 87(2)(b) and § 87(2)(b) left the car in the street and walked to the side of the road. § 87(2)(b) believed that Officer Larkin stopped the car because he saw § 87(2)(b) calling to file a civilian complaint (Allegation B).

After some time an officer arrived in a 3-wheel scooter and told § 87(2)(b) to move his car because it was blocking traffic. Around 1:00PM, a Hispanic male officer and an Asian male officer (later identified as Sergeant Alexis Rodriguez and Officer Taejin Lim, respectively) arrived and spoke with Officer Friendly. § 87(2)(b) approached Sergeant Rodriguez and said, "Are you the lieutenant?" Sergeant Rodriguez replied, "Yes, I am." § 87(2)(b) said, "I called so that you can come and talk to me, because people are taking advantage of me." Sergeant Rodriguez said, "Well you'll have to wait. I have a police officer injured." § 87(2)(b) said, "What do you mean a police officer injured?" Sergeant Rodriguez said, "Well, obviously you hit him on 79th Street, and now I have to do a report." § 87(2)(b) said, "He's not hurt. I didn't touch him. If you're going to call an ambulance for him, you're going to have to call an ambulance for my brother." Sergeant Rodriguez said, "Is your little brother hurt?" § 87(2)(b) stated that he said in a sarcastic way, "Well, he might be hurt since you're not paying attention to him." § 87(2)(b) then told § 87(2)(b) "You know what, forget it. We're not going to stoop to their level. Forget the ambulance, we don't need an ambulance. If they ask you for an ambulance, say no."

Around 1:30PM, Officer Lim came over to § 87(2)(b) and said, "What happened? You hit him on 79th Street?" § 87(2)(b) said, "Well if that's the case- that I hit him on 79th Street and he was injured- why are we on 73rd Street? Six blocks later, after he picked up all the things from the parade, he decides that he's injured. Obviously he feels threatened because we called about complaining. He is just saying he got injured to defend himself, being that he just hit a little kid." Officer Lim said, "That guy's just probably looking for vacation." § 87(2)(b) went over to the ambulance to see what was happening and returned and told § 87(2)(b) that he saw Officer Friendly with ice on both his knees. Officer Lim stated that § 87(2)(b) could go to the precinct to make a complaint. An officer gave § 87(2)(b) the names of Officer Larkin, Officer Johnson, and Officer Friendly. An officer gave § 87(2)(b) 3 summonses and § 87(2)(b) and § 87(2)(b) got in their car and left.

Results of Investigation

Officer Statements

Officer Brian Larkin

Officer Brian Larkin, a § 87(2)(b), filled out a Witness Statement to Injury to Member of the Department form (encl. 1aa) and was interviewed by the CCRB on September 23, 2003 (encl. 4k). § 87(2)(g)

On August 4, 2003, Officer Brian Larkin was picking up barriers on 37th Avenue with officers whose names he could not remember. At around 11:10AM Officer Larkin was on top of the barrier truck and two officers (later identified as Officer Friendly and Officer Burgos) were in the street handing him barriers. Traffic was heavy and cars were slowly driving around the truck. About 8-10 car lengths behind the truck Officer Larkin saw a red vehicle moving at a fast pace that he could not estimate more than saying it was above 10mph. As the car approached the truck, Officer Friendly and/or Officer Burgos gestured for the car to stop but the car did not stop.

A few seconds later the car was almost parallel with the barrier truck. Officer Larkin did not know if Officer Friendly was crossing the street at the time, but Officer Larkin saw the car strike Officer Friendly's right leg. The car squeezed Officer Friendly between the barrier truck and itself and as Officer Friendly tried to "push the car away" his hands made contact with the "passenger area" of the car. Officer Friendly did not kick the car and Officer Larkin could not specify what area of the car Officer Friendly made contact with. When asked if Officer Friendly hit the car hood, fender and/or mirror, Officer Larkin could only state that Officer Friendly touched the "passenger area" of the car. When asked if Officer Friendly hit the passenger of the vehicle (later identified as § 87(2)(b)) Officer Larkin stated that the passenger

was part of the passenger area of the car. Officer Larkin did not hear Officer Friendly, the driver or the passenger of the vehicle say anything during this time.

The car stopped and § 87(2)(b) got out of the car and aggressively yelled, “You can’t fucking hit me. I’m a § 87(2)(b) old kid.” Officer Larkin did not know if any of the officers responded to § 87(2)(b) or why § 87(2)(b) would claim that someone had hit him. After a couple seconds § 87(2)(b) got back in the car and the car started to drive away. An officer helped a limping Officer Friendly sit down in the barrier truck. All the officers got into the truck and did not pick up any more barriers.

About a half block away the car stopped at a red light. The barrier truck drove up to the car and Officer Larkin got out showed the driver (later identified as § 87(2)(b)) his badge and instructed him to turn off the car. § 87(2)(b) turned off the car and he and § 87(2)(b) walked to the side of the road. Officer Larkin went to the barrier truck and an officer called 911.

After about 5 minutes, officers responded to the scene. Officer Larkin could not remember who arrived, but an officer interviewed Officer Larkin and the other officers. Officer Friendly requested an ambulance, which arrived and took him away.

Officer Marc Burgos

Officer Marc Burgos, a § 87(2)(b) was interviewed by the CCRB on September 29, 2003 (encl. 4l). Details are as follows:

On August 4, 2003 at around 11:10AM, Officer Burgos was working a barrier detail with Officer Dennis Friendly and two other officers (later identified as Officer Larkin and Officer Johnson) on 37th Avenue near 78th Street. Officer Johnson was in the driver’s seat of the truck and Officer Burgos and Officer Friendly were standing in the street and picking up barriers and handing them to Officer Larkin, who was on the truck bed. The barrier truck had stopped traffic behind it and there weren’t any cars driving around it. Officer Burgos was about 6 feet away from Officer Friendly. Officer Burgos was focused on Officer Larkin when he heard Officer Friendly say, “Stop! Stop! Stop!,” and when Officer Burgos turned he saw a car slow down a little and then continue forward and hit one of Officer Friendly’s legs near the knee. The driver (later identified as § 87(2)(b)) was on his cell phone at this time and Officer Friendly banged on the hood of the car to push the car away from him. The car pinned Officer Friendly against the barrier truck and then drove 10-15 feet in front of the truck and stopped. Officer Burgos did not hear Officer Friendly say, “What the hell are you doing? Are you stupid?” Officer Friendly did not kick the fender, hit the mirror or the passenger (later identified as § 87(2)(b)). Officer Friendly did not hit anything in the passenger area of the car.

Officer Friendly started to limp and said to Officer Burgos, “The car hit me.” § 87(2)(b) got out of the car and came over to Officer Friendly, cursed at him and said something about a “fucking kid.” Officer Burgos was standing behind the barrier truck and could not see § 87(2)(b). Officer Burgos did not know if Officer Friendly or any other officer said anything to § 87(2)(b). § 87(2)(b) told § 87(2)(b) to get back in the car and § 87(2)(b) did.

§ 87(2)(b) drove away and the officers asked Officer Friendly if he needed an ambulance. Officer Friendly stated that he did and someone called an ambulance and the police. The officers got into the truck and drove to catch up with § 87(2)(b)’s car. Officer Larkin got out of the truck and stopped § 87(2)(b)’s car. Everyone waited for the police to arrive. At some point after the police arrived, Officer Friendly asked Officer Burgos to call over a supervisor because § 87(2)(b) had come over and threatened him. The sergeant at the scene told Officer Burgos to issued § 87(2)(b) some summonses. Officer Burgos issued the summonses and gave them to § 87(2)(b). Officer Friendly was taken away in the ambulance and everyone left the scene.

Officer Dennis Friendly

Officer Dennis Friendly, a § 87(2)(b) gave a statement regarding the incident in the Application for Line of Duty form that was filled out (encl. 1z) and was interviewed by the CCRB on September 26, 2003 (encl. 7m). § 87(2)(g)

On August 4, 2003 at around 11:10AM, Officer Dennis Friendly, Officer Marc Burgos, and two officers (later identified as Officer Dennis Johnson and Officer Brian Larkin) were working barrier detail on 37th Avenue near 78th Street. All the cars behind the barrier truck were stopped as Officer Friendly and Officer Burgos handed barriers to Officer Larkin. Officer Friendly saw a car drive around the car behind the barrier truck and attempt to drive around the barrier truck. The driver (later identified as § 87(2)(b)) was on his cell phone and the car was going about 20mph. As the car approached Officer Friendly, he gestured with his hands and said, "Stop." The car continued forward and Officer Friendly yelled, "Stop!" The car continued and struck Officer Friendly in the left calf, pinning him between itself and the barrier truck. Officer Friendly lifted up his leg, stood on his right leg, and put his hands on the car fender and front hood in an attempt to push away the car. The car drove past the barrier truck. Officer Friendly did not say, "What the hell are you doing? Are you stupid?" Officer Friendly did not kick the fender, hit the mirror or hit the car passenger (later identified as § 87(2)(b)).

The car stopped about 10-15 feet in front of the barrier truck and § 87(2)(b) and § 87(2)(b) exited the car. § 87(2)(b) was on his cell phone and both he and § 87(2)(b) were yelling and cursing. § 87(2)(b) said, "How can you hit my car? I'm only § 87(2)(b) old. I'm going to fuck you up. You ain't the fucking police. I'm going to call the cops." Officer Friendly did not respond, but turned to Officer Burgos in disbelief. Officer Larkin came off the truck, showed § 87(2)(b) and § 87(2)(b) his badge, and said, "No problem, call the police." Officer Larkin called to have a sergeant respond to the scene and told § 87(2)(b) "Pull over your car." § 87(2)(b) and § 87(2)(b) got into their car and started to drive away. Officer Larkin and Officer Johnson asked Officer Friendly if he was okay. Officer Friendly limped to the truck and the officers got into the truck and drove .5-1 block away where § 87(2)(b)'s car was. Officer Larkin and Officer Johnson stopped § 87(2)(b)'s car. Officer Dennis Johnson called an ambulance for Officer Friendly.

After about 10 minutes, the police arrived and spoke with § 87(2)(b) and Officer Friendly. Officer Friendly was checked out by an ambulance. At one point § 87(2)(b) came over and told Officer Friendly, "I wish we were in a dark alley- I would fuck you up, yo!" No one heard § 87(2)(b) say this, but one of the EMT's saw § 87(2)(b) approach Officer Friendly. Officer Friendly tried to call over Sergeant Rodriguez, but by the time he came over, § 87(2)(b) had left. Officer Burgos wrote § 87(2)(b) 3 summonses. Officer Friendly was taken to the hospital in the ambulance and took the rest of the day off.

Sergeant Alexis Rodriguez

Sergeant Rodriguez, a § 87(2)(b), was interviewed by the CCRB on October 10, 2003 (encl. 2n). Details are as follows:

On August 4, 2003 at around 11:30AM, Sergeant Rodriguez and Officer Taejin Lim responded to a call at 37th Ave. and 77th Street. The call may have come over as a civilian complaint and a report of an injured officer. When Sergeant Rodriguez arrived, he spoke with Officer Dennis Friendly, who was sitting in the ambulance. Officer Friendly told Sergeant Rodriguez that he had been hit by a car, but Sergeant Rodriguez could not recall any details of what Officer Friendly or any of the witness officers told him.

Sergeant Rodriguez spoke with the driver of the car and the passenger. Sergeant Rodriguez could not recall if § 87(2)(b) stated that PO Friendly had hit § 87(2)(b)'s car and § 87(2)(b) and that the officers cursed at them. § 87(2)(b) and § 87(2)(b) stated that they wanted to file a civilian complaint but Sergeant Rodriguez could not recall what their complaint was about.

At some point Officer Friendly told Sergeant Rodriguez that § 87(2)(b) had threatened him but Sergeant Rodriguez could not recall if anything was done about the threat. Sergeant Rodriguez did not tell any

officers to issue § 87(2)(b) summons, but after being informed that § 87(2)(b) was on his cell phone, he may have asked if § 87(2)(b) had already been given summonses. After this conversation an officer issued § 87(2)(b) summonses. Officer Friendly was taken to the hospital, and later that day Sergeant Rodriguez saw Officer Friendly at the 114 Precinct, where Officer Friendly was limping.

Officer Taejin Lim

Officer Lim, a § 87(2)(b) was interviewed by the CCRB on October 10, 2003 (encl. 2o). Details are as follows:

On August 4, 2003, Officer Lim and Sergeant Alexis Rodriguez responded to a call reporting an accident involving a police officer. When they arrived on the scene Officer Lim spoke with Officer Friendly and then § 87(2)(b) and § 87(2)(b) and § 87(2)(b) were very angry and § 87(2)(b) told Officer Lim that the officers had yelled at him. Officer Lim could not recall if § 87(2)(b) and § 87(2)(b) stated that the officers cursed at them. § 87(2)(b) was upset that Officer Friendly was being taken to the hospital and did not know why Officer Friendly would need to go to the hospital. § 87(2)(b) and § 87(2)(b) stated that their car did not hit Officer Friendly, but Officer Friendly had hit the front part of their car and struck § 87(2)(b) refused the ambulance and Officer Lim took their civilian complaint. Sergeant Rodriguez was only present for parts of Officer Lim's conversation with § 87(2)(b) and § 87(2)(b) Officer Lim saw Officer Friendly walking around on the scene and stated that Officer Friendly was not limping or displaying any injury.

Officer Dennis Johnson

The CCRB tried to schedule Officer Johnson for an interview, but was informed by the 564 Barrier Section Command that Officer Johnson has been suspended indefinitely.

Police Documents

Sprint Report

The CCRB obtained a copy of the Sprint Report for August 4, 2003 (encls. 1-5s), which states that at 11:32AM "male caller states barrier truck- 1 member of service involved- no injuries- male caller states have sergeant respond- no further information- § 87(2)(b) cell site- T-mobile 37-10 76th St." The communications recording indicated that the male caller identified himself as Officer Johnson. At 11:36AM Officer Johnson called again and stated, "Need sergeant at location- one member of service involved- in red car- member of service in barrier squad- no emergency." The communications recording indicates that Officer Johnson informed the operator that an officer was hit by a car, but only sustained, "if anything, a minor injury." An ambulance was called at 11:38AM. Unit 115ST1, which was Sergeant Rodriguez and Officer Lim, responded at 11:39AM. At 11:39AM a male caller stated "request sergeant to respond to location. He is being detained by the police. § 87(2)(b) cell site nextel wireless 37-06 69." This cell phone number belongs to § 87(2)(b) At 11:45AM, the ambulance arrived on the scene and at 12:28PM the injured officer was taken to § 87(2)(b).

Aided Form

Officer Lim completed an Aided Form for § 87(2)(b) (encl. 1-5u), which showed that § 87(2)(b) stated that he suffered from pain on his head and refused medical treatment. No Aided Form was completed for Officer Friendly.

Summonses issued to § 87(2)(b)

§ 87(2)(b) received summonses (encl. 1x) for "driving against vehicular traffic," "driving with expired insurance" and "driving vehicle with a cellphone." § 87(2)(b) stated that he went to court for these summonses on November 26, 2003, and they were dismissed. Records at Citywide Summonses Operation and Criminal Summonses Dispositions both indicate that there is no public record of the summonses issued to § 87(2)(b).

Police Accident Report

The Police Report (encl. 1y) states that Officer Friendly stated that § 87(2)(b)'s vehicle traveled the wrong way on 37th Ave. and struck him. § 87(2)(b) claimed that he did not hit Officer Friendly.

Command Log

The Command Log for the 115th Pct. (encl. 1w) states at 1515hrs Sergeant Rodriguez notified § 87(2)(b) and § 87(2)(b) at the scene of the incident of procedures for filing a CCRB complaint and notified IAB of their complaint.

Roll Call

Roll call for the 115th Pct. (encl. 1-2v) shows that Officer Rodriguez and Officer Lim were assigned to work 115ST1 and were on duty at the time of the incident.

Forms regarding Officer Friendly's injuries

The CCRB obtained a copy of the **Application for Line of Duty Form** for Officer Friendly (encl. 1z), which states that Officer Friendly claimed that a vehicle had struck his right lower leg. The form includes Sergeant Rodriguez's report of the injury, which states that Officer Friendly attempted to push the car away. The **Witness Statement to Injury to Member of the Department** filled out by Officer Brian Larkin a witness statement (encl. 1aa) that stated, "At t/p/o while we were loading barriers into the Barrier Truck 3185. Did observe PO Friendly motion to red vehicle to slow down. Vehicle proceeded to move, squeezing PO Friendly between red vehicle & Barrier Truck, striking him in the right leg. PO Friendly attempted to push red vehicle away from him." The **FDNY Ambulance Call Report** states that Officer Friendly complained that his right leg was tender resulting from being struck by a car. § 87(2)(b) state that Officer Friendly suffered from tenderness in his right leg. At one point the forms state left leg rather than right leg. Officer Friendly was prescribed pain medication.

§ 87(2)(b)'s and § 87(2)(b)'s Criminal Records

§ 87(2)(b) and § 87(2)(b) do not have any criminal convictions on record.

Substantiated CCRB cases that resulted in the imposition of discipline.

Officer Friendly has never had a CCRB case substantiated against him. Officer Larkin has never had a CCRB case substantiated against him.

Conclusions and Recommendations

Officer Identification

As § 87(2)(b) and § 87(2)(b) could not name all the officers in the incident and the officers could not recall each others' names, the identifications of Officer Larkin, Officer Burgos and Officer Friendly rest largely upon their own admissions as to their actions during the incident. An officer who responded to the scene gave § 87(2)(b) the names and tax identifications of Officer Larkin, Officer Johnson and Officer Friendly. It is undisputed that Officer Friendly was the officer who initially interacted with § 87(2)(b) and § 87(2)(b) as it is well documented by interview statements and police and medical forms. § 87(2)(b) also referred to Officer Friendly by name in his CCRB interview, and both he and § 87(2)(b) were able to provide accurate descriptions of Officer Friendly's physical characteristics. Officer Larkin identified himself as the one who stopped § 87(2)(b)'s car and § 87(2)(b) and § 87(2)(b) were able to provide largely accurate descriptions of Officer Larkin's physical characteristics.

Undisputed Facts

There are few undisputed facts in this case. It is agreed that on August 4, 2003, § 87(2)(b) was driving with § 87(2)(b) on 37th Ave. when they came upon heavy traffic conditions caused by an NYPD barrier truck stopped in the street. § 87(2)(b) tried to drive around the truck and as he did Officer Friendly put

his hands on § 87(2)(b)'s car. § 87(2)(b) stopped the car and § 87(2)(b) exited the car and began to yell at Officer Friendly, stating something that alluded to the fact that § 87(2)(b) is a minor. § 87(2)(b) got back into his car and he and § 87(2)(b) drove away from the incident location. The officers got into the barrier truck and drove to catch up with § 87(2)(b)'s car. Officer Larkin instructed § 87(2)(b) to stop the vehicle. § 87(2)(b) and § 87(2)(b) exited the vehicle and waited for the police to arrive. An ambulance arrived and attended to Officer Friendly, while § 87(2)(b) refused medical attention. Sergeant Rodriguez and Officer Lim arrived and spoke with Officer Friendly, § 87(2)(b) and § 87(2)(b) was issued three summonses and was given information on how to file a civilian complaint.

In dispute are whether Officer Friendly was indeed struck by § 87(2)(b)'s vehicle and whether in response Officer Friendly slapped § 87(2)(b) across the forehead.

Credibility

§ 87(2)(g)

[REDACTED]

§ 87(2)(b) and § 87(2)(b) gave comprehensive accounts of the incident that included descriptions of their own conduct and mistreatment of the officers. § 87(2)(b) stated that he continued to drive forward despite Officer Friendly's instructions to stop. § 87(2)(b) also admitted that he told Sergeant Rodriguez, "If you're going to call an ambulance for him [Officer Friendly], you're going to have to call an ambulance for my brother... He might be hurt, since you're not paying attention to him." § 87(2)(b) acknowledged that he was incensed by Officer Friendly's actions, was ready to fight him, and cursed at the officers throughout the incident. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Force used against § 87(2)(b)'s car and the officers' alleged use of discourteous language.

§ 87(2)(b) claimed that, as § 87(2)(b) drove towards Officer Friendly, Officer Friendly struck § 87(2)(b)'s car and said, "Stop! What the hell are you doing? Are you stupid?" Under the circumstances at hand, these actions are not being pled as individual CCRB allegations, but are incorporated into the force allegation. § 87(2)(b) claimed that officers cursed at him after he got out of the car and yelled at Officer Friendly, but could not remember what was said. Since § 87(2)(b) could not state what the officers said, this is not being pled as an allegation.

Allegation A: Officer Dennis Friendly used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that Officer Friendly struck him in the forehead, after which, § 87(2)(b) exited the car and yelled, "Why did you do that? I'm a § 87(2)(b)-old boy. How are you gonna hit a § 87(2)(b)-old boy for no reason?" § 87(2)(b) stated that Officer Friendly struck § 87(2)(b) and § 87(2)(b) yelled, "How can you hit a child?" Officer Larkin stated that Officer Friendly struck the "passenger area" of the car, which includes § 87(2)(b) and § 87(2)(b) yelled, "You can't fucking hit me. I'm a § 87(2)(b)-old kid." Officer Burgos stated that Officer Friendly did not hit § 87(2)(b) but § 87(2)(b) yelled something about "a fucking kid." Officer Friendly denied that he hit § 87(2)(b) but stated that § 87(2)(b) yelled, "How can you hit my car? I'm only § 87(2)(b) old." § 87(2)(g)

Officer Larkin could not specify where Officer Friendly struck the car, but emphasized that Officer Friendly struck the passenger area, which contained § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 203-11 states that "at the scene of a police incident... [officers must] use minimal necessary force" (encl. 1a). § 87(2)(g)

§ 87(2)(g)

Allegation B: Officer Brian Larkin stopped the car in which § 87(2)(b)

Patrol Guide procedure 217-01 dictates that a member of service at the scene of an accident involving a line of duty injury must “request witnesses to await arrival of supervisor and precinct auxiliary coordinator” (encl. 3a). After the collision with Officer Friendly, § 87(2)(b) drove away from the scene. The officers drove to catch up with § 87(2)(b) and Officer Larkin stopped § 87(2)(b)’s car. § 87(2)(b) turned off the car and he and § 87(2)(b) waited for the patrol supervisor to arrive. § 87(2)(b) alleged that Officer Larkin stopped the car because he saw § 87(2)(b) call to file a civilian complaint. § 87(2)(b) stated that when § 87(2)(b) initially got out of the car to confront Officer Friendly, Officer Larkin and Officer Burgos told § 87(2)(b) to calm down and leave. After § 87(2)(b) had called the CCRB and driven away from the incident, § 87(2)(b) and § 87(2)(b) both stated that Officer Larkin stopped them and said something to the effect of, “You want to do it this way? Fine, we’ll do it this way.” § 87(2)(g)

[illegible]

§ 87(2)(b) “An officer can stop a vehicle when he observes... a motorist who drives in the wrong lane” (encl. 2b), as Officer Larkin observed § 87(2)(b) do, as well as speak on his cell phone while driving. § 87(2)(g) § 87(2)(g) § 87(2)(g) § 87(2)(g)

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